

02:00 PM **LINE 1**

21-CIV-02564

PEARL WU, MD, ET AL VS. THE PERMANENTE MEDICAL GROUP, INC.

PEARL WU
THE PERMANENTE MEDICAL GROUP, INC.

TIMOTHY C. TRAVELSTEAD
SPENCER DAVIDSON

Motion to be Relieved as Plaintiff's Counsel (Travelstead)

TENTATIVE RULING:

As an initial matter, pursuant to California Rules of Court, rule 3.1362(a), a motion to be relieved as counsel must be made on Judicial Council Form MC-051 and be accompanied by a declaration on Form MC-052 which states, generally, the reasons why the motion is being brought. (Cal. Rules of Court, rules 3.1362(a) and (c).) Plaintiff's counsel has not used these mandatory forms. Plaintiff's counsel shall file the appropriate forms.

More substantively, Dr. Wu has resisted her counsel's effort to withdraw given the impending five-year deadline (see Code Civ. Proc., § 583.310) which expires on August 24, 2026, and the likelihood of prejudice to Dr. Wu. She has contacted a number of attorneys, all of whom have declined to substitute into this case given these considerations.

At this late stage — with trial set to begin later this month — the court is extremely reluctant to permit plaintiff's counsel to withdraw without their client having retained substitute counsel. Moreover, although the court can hear from plaintiff's counsel *in camera* regarding their claim to have a conflict of interest with Dr. Wu (see *Manfredi & Levine v. Superior Court* (1998) 66 Cal.App.4th 1128, 1136), hearing otherwise privileged or confidential information creates a very awkward situation for the trial judge regardless of who represents Dr. Wu at trial. Accordingly, the court has determined that another judge should hear from plaintiff and plaintiff's current counsel, *in camera*, and report back to this court as to whether an unwaivable ethical conflict exists, and if so, whether that judge recommends that plaintiff's counsel should be permitted to withdraw.

The Honorable David Silberman, in Department 11, has agreed to hear this *in camera* motion. If Judge Silberman reports that such a conflict exists and recommends that plaintiff's current counsel be permitted to withdraw, this court will then set a deadline for a date on which Dr. Wu will advise the court and defendant's counsel that she has obtained substitute representation or that she will represent herself. Any continuance of the trial and extension of the five year statute (see Code Civ. Proc., § 583.304, subd. (c)), will be limited to between three and six months.

Plaintiff and her counsel are ordered to contact Department 11 at dept11@sanmateocourt.org to arrange the *in camera* hearing.

02:00 PM LINE 2

22-CIV-03747

HH HOLDING GLOBAL CO., LTD VS. DAN F. SILVEIRA

HH HOLDING GLOBAL CO., LTD
DAN F. SILVEIRA

ELISE M. BALGLEY
MARK K. SLATER

Defense Motion for Entry of Judgment (CCP 664.6) or in the Alternative, Request to Set for Trial

TENTATIVE RULING:

The Motion to Enter Judgment Pursuant to Code of Civil Procedure Section 664.6 by defendant and cross-complainant Dan F. Silveira is **DENIED**. The court **GRANTS** defendant's alternative request to set this matter for trial.

On a motion under Code of Civil Procedure, section 664.6, the court must determine whether the parties entered into a valid and binding settlement. (*Hines v. Lukes* (2008) 167 Cal.App.4th 1174, 1182.) "A settlement is enforceable under section 664.6 only if the parties agreed to all material settlement terms." (*Ibid.*) The court may consider the parties' declarations and other evidence in deciding what terms the parties agreed to. (*Ibid.*) If the court finds that the parties entered into an enforceable settlement, then the court should grant the motion and enter a formal judgment pursuant to the terms of the settlement. (*Id.*, at pp. 1182-1183.) However, while the court may receive evidence, determine disputed facts and enter the terms of a settlement agreement as a judgment, nothing in section 664.6 authorizes a judge to create the material terms of a settlement as opposed to deciding what terms the parties themselves previously agreed. (*Machado v. Myers* (2019) 39 Cal.App.5th 779, 790.)

On April 29, 2026, the parties appeared before the court and recited the terms of the settlement agreement orally on the record. (Slater Decl., exh. A, Court Transcript from April 29, 2026 hearing.) The stated terms were that plaintiff would pay defendant \$300,000, there would be a full mutual 1542 release, additional language would be added as necessary to release the Labor Code claims, and no confidentiality provision. (*Id.*, at pp. 5-6.) The parties would also enter into a written settlement agreement. (*Id.*, at p. 7.)

The parties now disagree about whether they reached an agreement on the material terms of the settlement. Defendant contends that everything stated orally on the record before the court constitutes the material terms of the settlement. Plaintiff however, claims that he believed the photographs and videos obtained during defendant's claimed work for cross-defendants would be returned as part of the settlement.

As set forth above, the court may receive evidence and determine disputed facts in ruling on this Motion. Plaintiff's declaration supports that he believed the photographs and videos during defendant's employment would be returned as part of the settlement, although it appears that this issue was not discussed at the settlement conference. (See Jin Decl., and exhs. 1-2.) On June 30, 2026, defendant has submitted an unsigned "proposed" supplemental declaration stating